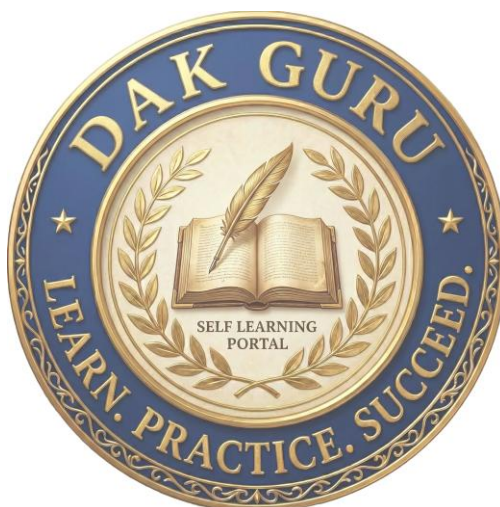


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STUDY MATERIAL

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The Central Administrative Tribunals Act, 1985

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Statutory Study Booklet — As amended and judicially interpreted
For LDCE IP & PS Group 'B' Departmental Examination Aspirants
www.dakguru.com

DISCLAIMER

This booklet has been prepared strictly from an examination point of view. While every effort has been made to ensure accuracy and to incorporate recent changes, amendments and judicial pronouncements affecting the relevant Acts, Rules and Regulations, this document is intended as a study aid only. Readers are strongly advised to refer to official government sources, the India Code, gazette notifications and Supreme Court judgments for the most authoritative and up-to-date position.

⚠ IMPORTANT CURRENCY ALERT (READ FIRST): On 19 November 2025, in *Madras Bar Assn. v. Union of India* (2025 SCC OnLine SC 2498), a Division Bench of the Supreme Court (CJI B. R. Gavai and Justice K. Vinod Chandran) struck down the key provisions of the Tribunals Reforms Act, 2021 governing the appointment, minimum age, tenure and service conditions of tribunal Chairpersons and Members — including the four-year fixed tenure and the 50-year minimum-age requirement — as unconstitutional. Until fresh, constitutionally-compliant legislation is enacted, the principles laid down in MBA (IV) [(2021) 7 SCC 369] and MBA (V) [(2022) 12 SCC 455] now govern appointment, qualifications and tenure. The Court also directed the Union to establish a National Tribunals Commission within four months. Aspirants should treat Section 8 (term of office) below as legally unsettled and answer per the question's framing. (Source: Supreme Court judgment dated 19-11-2025.)

Introduction: A Brief Overview of the CAT

The Central Administrative Tribunal (CAT) is a **quasi-judicial body** established under **Article 323-A** of the Constitution. Its primary objective is the adjudication of disputes and complaints relating to the recruitment and conditions of service of persons appointed to public services and posts in connection with the affairs of the Union or of other authorities under the control of the Government. It exercises **original jurisdiction** — an aggrieved employee approaches the CAT directly, rather than by way of appeal.

Constitutional and Historical Foundation

- **Constitutional source:** Article 323-A was inserted into the Constitution by the **42nd Constitutional Amendment Act, 1976**, which empowered Parliament to provide, by law, for the adjudication of service disputes through administrative tribunals. The idea drew on the recommendations of the **Swaran Singh Committee**.
- **Enabling statute:** To give effect to Article 323-A, Parliament enacted the **Administrative Tribunals Act, 1985 (Act No. 13 of 1985)**, which received the President's assent on **27 February 1985**.
- **Two key dates (do not confuse):** the Act is deemed to have come into force on **1 July 1985** (Section 1), whereas the CAT itself — with its Principal Bench at New Delhi — **commenced functioning on 1 November 1985**.
- **Article 323-A vs. Article 323-B:** tribunals under Article 323-A (service matters) can be created **only by Parliament**, and only one tribunal for the Union and one for each State (or for two or more States jointly) is contemplated, with **no hierarchy of**

tribunals. By contrast, Article 323-B tribunals (other specified matters) may be created by **both Parliament and State Legislatures.**

- **Foundational case:** In *S. P. Sampath Kumar v. Union of India* (1987), the Supreme Court upheld the validity of the Act and treated the Tribunal as a **substitute for the High Court** in service matters — a position later refined in *L. Chandra Kumar* (see below).

Key Features at a Glance

- **Benches:** As per the official CAT website (cgat.gov.in), there are presently **19 Benches and 19 Circuit Benches** of the Central Administrative Tribunal across India.
- **Composition:** The Tribunal is headed by a Chairman. There are **69 Members** across the various Benches, of whom **34 are Judicial Members** and **35 are Administrative Members.** (The present Chairman is Justice Ranjit Vasantrya More, former Chief Justice of the Meghalaya High Court.)
- **Notified Organisations:** The Government of India has notified **215 organisations** (Ministries/Departments and other bodies) under **Section 14(2)** to bring them within the jurisdiction of the CAT.
- **Status:** The conditions of service of the Chairman and Members are governed by statute and judicial directions; historically they were placed on par with a Judge of a High Court.
- **Procedure:** The procedural simplicity of the Act is evident from the fact that an aggrieved government employee may appear in person before the Tribunal.
- **Free from technical rules:** A Tribunal is **not bound by the Code of Civil Procedure, 1908 or the strict rules of the Indian Evidence Act, 1872**, and is guided by the **principles of natural justice** (Section 22).
- **Who is excluded:** The Act does **not** apply to members of the armed forces, officers and servants of the Supreme Court / High Courts, and the secretarial staff of Parliament and State Legislatures (Section 2).
- **Fee:** An Original Application can be filed on payment of a nominal prescribed fee (statutorily capped at ₹100 under Section 19).
- **Contempt:** Under **Section 17**, the Tribunal exercises the same jurisdiction, powers and authority in respect of contempt of itself as a High Court.

- **Appeals:** Initially, decisions of the Tribunal could be challenged before the Supreme Court by a Special Leave Petition. Following the Supreme Court's decision in *L. Chandra Kumar v. Union of India* (1997), orders of the CAT are now challenged by way of a writ petition under **Article 226/227** before the High Court within whose territorial jurisdiction the concerned Bench is situated.

 **LEGISLATIVE NOTE:** Such a writ petition challenging a CAT order is heard by a **Division Bench (two judges)** of the High Court. A litigant cannot appeal directly to the Supreme Court under Article 136 against a CAT order without first approaching the High Court.

Chapter I – Preliminary

Section 1 – Short Title, Extent and Commencement

- This Act may be called the Administrative Tribunals Act, 1985. It is deemed to have come into force on **1st July 1985**.
- It extends to the whole of India.

 **LEGISLATIVE NOTE:** Following the Jammu and Kashmir Reorganisation Act, 2019, the Act's framework applies to the Union Territories of Jammu & Kashmir and Ladakh with effect from **31st October 2019**. CAT Benches at Jammu and Srinagar now serve this region.

Section 2 – Act Not to Apply to Certain Persons

The provisions of this Act shall not apply to:

- (a) any member of the naval, military or air forces or of any other armed forces of the Union;
- (b) any officer or servant of the Supreme Court or of any High Court or courts subordinate thereto;
- (c) any person appointed to the secretarial staff of either House of Parliament or to the secretarial staff of any State Legislature or a House thereof, or (in the case of a Union Territory having a Legislature) of that Legislature.

Section 3 – Definitions

In this Act, unless the context otherwise requires:

- (a) **“Administrative Member”** means a Member of a Tribunal who is not a Judicial Member.

- **(aa) “Administrative Tribunal”** in relation to a State, means the Administrative Tribunal for the State or the Joint Administrative Tribunal for that State and any other State(s); and in relation to the Central Administrative Tribunal or a Joint Administrative Tribunal, the Central Administrative Tribunal.
- **(b) “Application”** means an application made under Section 19.
- **(c) “Appointed Day”** in relation to a Tribunal, means the date with effect from which it is established, by notification, under Section 4.
- **(d) “Appropriate Government”** means — (i) in relation to the Central Administrative Tribunal or a Joint Administrative Tribunal, the Central Government; and (ii) in relation to a State Administrative Tribunal, the State Government.
- **(e) “Bench”** means a Bench of a Tribunal.
- **(i) “Central Administrative Tribunal”** means the Administrative Tribunal established under sub-section (1) of Section 4.
- **(ia) “Member”** means a member (whether Judicial or Administrative) of a Tribunal, and includes the Chairman.
- **(j) “Notification”** means a notification published in the Official Gazette.
- **(k) “Post”** means a post within or outside India.
- **(l) “Prescribed”** means prescribed by rules made under this Act.
- **(m) “President”** means the President of India.
- **(o) “Rules”** means rules made under this Act.
- **(p) “Service”** means service within or outside India.
- **(q) “Service Matters”**, in relation to a person, means all matters relating to the conditions of his service in connection with the affairs of the Union or of any State or of any local or other authority within the territory of India or under the control of the Government of India, in respect of:
 - (i) remuneration (including allowances), pension and other retirement benefits;
 - (ii) tenure, including confirmation, seniority, promotion, reversion, premature retirement and superannuation;
 - (iii) leave of any kind;
 - (iv) disciplinary matters; and

- (v) any other matter whatsoever.
- (r) “**Service Rules as to redressal of grievances**” means the rules, regulations, orders or other instruments providing for redressal of grievances in relation to service matters.
- (s) “**Supreme Court**” means the Supreme Court of India.

 **LEGISLATIVE NOTE:** The office and definition of “Vice-Chairman” were omitted from the Act by the **Finance Act, 2017**, which restructured tribunal service conditions. Earlier references to the Vice-Chairman therefore no longer operate.

Chapter II — Establishment of Tribunals and Benches

Section 4 — Establishment of Administrative Tribunal

- The Central Government shall establish an Administrative Tribunal known as the Central Administrative Tribunal.
- On receipt of a request from a State Government, the Central Government may establish a State Administrative Tribunal, to be known as the “(Name of the State) Administrative Tribunal”.
- Two or more States may, by agreement, request the Central Government to establish a Joint Administrative Tribunal for those States.

Section 5 — Composition of Tribunals and Benches

- Each Tribunal shall consist of a Chairman and such number of Judicial and Administrative Members as the appropriate Government may deem fit.
- Ordinarily, a Bench shall consist of one Judicial Member and one Administrative Member.
- The Chairman may transfer a Member from one Bench to another and may himself discharge the functions of a Judicial or Administrative Member of any Bench.
- At any stage of a hearing, if it appears that a case ought to be heard by a Bench of two Members, the Chairman may transfer it to such Bench as he deems fit.
- The Benches of the Central Administrative Tribunal shall ordinarily sit at New Delhi (the **Principal Bench**) and at such other places as the Central Government may, by notification, specify.

- The sitting places of the Benches of a State Administrative Tribunal shall be specified by the State Government by notification.

Section 6 — Qualifications for Appointment as Chairman and Members

CURRENCY NOTE: The qualifications, appointment, tenure and service conditions of tribunal members were sought to be governed by the Finance Act, 2017 and then the Tribunals Reforms Act, 2021. After the Supreme Court struck down the relevant 2021 provisions on 19-11-2025, the qualification and selection standards laid down in *MBA (IV)* and *MBA (V)* apply until fresh legislation is enacted. The text below reflects the long-standing statutory position; verify against the latest Rules/judgment before relying on specific tenures or eligibility years.

- **Chairman:** A person is qualified for appointment as Chairman only if he is, or has been, a Judge of a High Court.
- **Administrative Member:** A person who has held the post of Secretary to the Government of India (or an equivalent post) for the prescribed period, or Additional Secretary to the Government of India (or equivalent) for the prescribed longer period, subject to the qualifications in force.
- **Judicial Member:** A person who has been a Judge of a High Court, or who has held a judicial office or specified senior law posts (e.g., Secretary/Additional Secretary in the Department of Legal Affairs or the Legislative Department) for the prescribed period, subject to the qualifications in force.
- **Appointing Authority:** The Chairman and Members of the CAT are appointed by the President. Historically, appointments were made after consultation with the Chief Justice of India; under the current scheme, appointments are made on the recommendation of a Search-cum-Selection Committee (the composition of which must satisfy the judicial-independence standards in the Madras Bar Association line of cases).

Section 7 — Member to Act as Chairman in Certain Circumstances

In the event of a vacancy in the office of the Chairman by reason of death, resignation or otherwise, or where the Chairman is unable to discharge his functions owing to absence, illness or any other cause, such one of the Members as the appropriate Government may, by notification, authorise shall act as the Chairman until a new Chairman assumes office or the existing Chairman resumes duties.

 **LEGISLATIVE NOTE:** This section was recast to remove references to the “Vice-Chairman” consequent upon the Finance Act, 2017.

Section 8 — Term of Office

⚠ CRITICAL UPDATE — POSITION UNSETTLED: The Tribunals Reforms Act, 2021 had fixed a **four-year term** with upper age limits of **70 years (Chairman)** and **67 years (Members)**, and a minimum age of 50 years for appointment. On **19 November 2025**, the Supreme Court (*Madras Bar Assn. v. Union of India*, 2025 SCC OnLine SC 2498) **struck down** the fixed four-year tenure and the 50-year minimum-age requirement as unconstitutional, holding that the 2021 Act merely re-enacted provisions previously declared invalid. The Court directed that, until valid fresh legislation is passed, the directions in MBA (IV) and MBA (V) shall govern tenure and service conditions. Existing appointees whose selection was completed before the 2021 Act commenced are protected under the parent statutes. **Examination guidance:** if a question quotes the 2021 Act, the “4 years / 70 / 67” figures are the statutory text; but note that the Supreme Court has struck these down (Nov 2025) and a National Tribunals Commission has been directed.

Section 9 — Resignation and Removal

- The Chairman or any Member may resign by notice in writing addressed to the President.
- The Chairman or a Member shall not be removed from office except by an order of the President on the ground of proved misbehaviour or incapacity, after an inquiry in which he has been informed of the charges and given a reasonable opportunity of being heard.
- The procedure for inquiry into misbehaviour or incapacity may be regulated by rules; the procedure must conform to the principles of judicial independence laid down by the Supreme Court.

Section 10 — Salaries, Allowances and Conditions of Service

- The salaries, allowances and other terms and conditions of service (including pension, gratuity and other retirement benefits) of the Chairman and Members shall be as prescribed, subject to the constitutional standards governing tribunals.
- A serving Government officer appointed as a Member shall be deemed to have retired from his parent service on the date he assumes charge as a Member.

Section 11 — Holding of Offices on Ceasing to be Chairman/Member

- The Chairman of the CAT shall be ineligible for further employment under the Central or any State Government.
- The Chairman of a State Administrative Tribunal (SAT) or Joint Administrative Tribunal (JAT) is eligible for appointment as Chairman or Member of the CAT, or as Chairman of another SAT/JAT, but not for any other employment under the Central or State Government.
- A Member of any Tribunal is eligible for appointment as Chairman or Member of any other Tribunal, but not for further employment under the Central or State Government.
- The Chairman or a Member shall not appear, act or plead before any Tribunal of which he was the Chairman or a Member.

Section 12 — Financial and Administrative Powers of the Chairman

The Chairman shall exercise such financial and administrative powers over the Benches as may be vested in him under the rules made by the appropriate Government, and may delegate these powers subject to the conditions specified.

Section 13 — Staff of the Tribunal

- The appropriate Government shall determine the categories of officers and other employees required to assist a Tribunal and provide the same.
- Such officers and employees discharge their functions under the general superintendence of the Chairman.
- Their salaries, allowances and conditions of service are specified by rules made by the appropriate Government.

Chapter III — Jurisdiction, Powers and Authority of Tribunals

Section 14 — Jurisdiction of the Central Administrative Tribunal

- From the appointed day, the CAT exercises all the jurisdiction, powers and authority that were exercisable immediately before that day by all courts (except the Supreme Court) in relation to recruitment and service matters of persons covered by the Act.

- Under **Section 14(2)**, the Central Government may, by notification, extend the CAT's jurisdiction to local or other authorities and to corporations or societies owned or controlled by the Central Government. (215 such organisations stand notified.)

Section 15 — Jurisdiction of State Administrative Tribunals

- Recruitment, and matters concerning recruitment, to any civil service of the State or any civil post under the State.
- All service matters concerning persons appointed to public services and posts in connection with the affairs of the State, and to local authorities, corporations or societies controlled or owned by the State Government.

Section 16 — Jurisdiction of a Joint Administrative Tribunal

A Joint Administrative Tribunal for two or more States exercises all the jurisdiction, powers and authority exercisable by the State Administrative Tribunals for those States.

Section 17 — Power to Punish for Contempt

A Tribunal has, and may exercise, the same jurisdiction, powers and authority in respect of contempt of itself as a High Court.

 **LEGISLATIVE NOTE:** This power is exercised under the framework of the **Contempt of Courts Act, 1971**, subject to the modifications in the Administrative Tribunal (Contempt of Courts) Rules, 1992.

Section 18 — Distribution of Business Among the Benches

- Where Benches are constituted, the appropriate Government may, by notification, provide for the distribution of business among the Benches and specify the matters each Bench may deal with.
- If a question arises as to whether a matter falls within the business allocated to a Bench, the decision of the Chairman is final.

Chapter IV — Procedure

Section 19 — Applications to Tribunals

- A person aggrieved by any order within the jurisdiction of a Tribunal may apply to the Tribunal for redressal of his grievance.

- Every such application must be in the prescribed form, accompanied by the prescribed documents/evidence and by a prescribed fee (**not exceeding one hundred rupees**) for filing, together with such other fees for service or execution of processes as may be prescribed.
- On receipt of an application, the Tribunal, if satisfied after such inquiry as it deems necessary that it is a fit case for adjudication, shall admit it; otherwise it may summarily reject it after recording reasons.
- Where an application has been admitted, no appeal or representation in relation to the same matter shall thereafter be entertained under the relevant service rules.

Section 20 — Applications Not to be Admitted Unless Other Remedies Exhausted

- A Tribunal shall not ordinarily admit an application unless the applicant has availed of all remedies available under the relevant service rules for redressal of grievances.
- A person is deemed to have availed of all such remedies if: (a) a final order has been passed by the competent authority rejecting his appeal or representation; or (b) where no final order has been passed, a period of **six months** has expired from the date the appeal/representation was made.
- A memorial to the President, a Governor or any other functionary is not treated as one of these remedies unless the applicant elected to submit it.

Section 21 — Limitation

- A Tribunal shall not admit an application: (a) unless made within **one year** from the date of the final order rejecting the appeal/representation; or (b) where no final order was made within six months of the appeal/representation, within **one year** from the expiry of that six-month period.
- Notwithstanding the above, an application may be admitted after one year if the applicant satisfies the Tribunal that he had sufficient cause for the delay.

Section 22 — Procedure and Powers of Tribunals

- A Tribunal is not bound by the procedure in the **Code of Civil Procedure, 1908**, but is guided by the principles of **natural justice** and may regulate its own procedure, including the places and times of inquiry and whether to sit in public or private.

- It must decide every application as expeditiously as possible, ordinarily on a perusal of documents and written representations and after hearing oral arguments.
- For specified purposes (e.g., summoning witnesses, requiring production of documents, receiving evidence on affidavit), a Tribunal has the same powers as a civil court under the Code of Civil Procedure, 1908.

Section 23 — Right to Take Assistance of a Legal Practitioner

- An applicant may appear in person or take the assistance of a legal practitioner of his choice.
- The Government or authority concerned may authorise one or more legal practitioners or its officers to act as presenting officers.

Section 24 — Conditions as to Making of Interim Orders

No interim order shall be made in any proceeding relating to an application unless:

- (a) copies of the application and supporting documents are furnished to the party against whom the order is sought; and
- (b) that party is given an opportunity of being heard.

As an exceptional measure, a Tribunal may make an interim order, for reasons to be recorded in writing, where it is necessary to prevent a loss to the applicant that cannot be adequately compensated in money.

- Such an interim order, unless sooner vacated, ceases to have effect on the expiry of **fourteen days** from the date it is made, unless the above requirements are complied with within that period and the Tribunal continues its operation.

Section 25 — Power of Chairman to Transfer Cases from One Bench to Another

On the application of any party (after notice and hearing) or on his own motion, the Chairman may transfer any case pending before one Bench to any other Bench for disposal.

Section 26 — Decision to be by Majority

If the Members of a Bench differ in opinion, the point is decided according to the majority. If they are equally divided, they state the points of difference and refer the matter to the Chairman, who either hears it himself or refers it to one or more other Members; the point

is then decided according to the opinion of the majority of the Members who have heard the case, including those who first heard it.

Section 27 — Execution of Orders of a Tribunal

An order of a Tribunal finally disposing of an application or appeal is executed in the same manner as a decree of a civil court, and for this purpose the Tribunal has all the powers of a civil court.

 **LEGISLATIVE NOTE:** The original finality clause that purported to oust the High Court's jurisdiction was **read down** in *L. Chandra Kumar v. Union of India* (1997). Tribunal orders are now subject to judicial review by a Division Bench of the High Court under Article 226/227.

Chapter V — Miscellaneous

Section 28 — Exclusion of Jurisdiction of Courts

On and from the appointed day, no court (except the Supreme Court, and an Industrial Tribunal or Labour Court in respect of matters within their domain) shall exercise jurisdiction or power in relation to recruitment and service matters falling within the Tribunal's jurisdiction.

 **LEGISLATIVE NOTE:** This exclusion has been **read down**: High Courts retain their writ jurisdiction under Article 226/227 over Tribunal orders, this being part of the basic structure of the Constitution (*L. Chandra Kumar*, 1997).

Section 29 — Transfer of Pending Cases

- Every suit or proceeding pending before any court (except a High Court) or other authority immediately before the establishment of a Tribunal, and within its jurisdiction, stands transferred to that Tribunal on that date.
- The transferring court or authority shall, as soon as may be, forward the records of such suit, appeal or proceeding to the Tribunal.

Section 29-A — Provision for Filing of Certain Appeals

Where, before the establishment of a Tribunal, a decree or order was made by a court (other than a High Court), an appeal lies:

- (a) to the CAT, within **ninety days** of the President's assent to the Administrative Tribunals (Amendment) Act, 1986, or within ninety days of receipt of the copy of the decree/order, whichever is later; and
- (b) to any other Tribunal, within **ninety days** of its establishment or within ninety days of receipt of the copy of the decree/order, whichever is later.

Sections 30 to 37 — Summary of Provisions

- **Section 30:** Proceedings before a Tribunal are deemed to be judicial proceedings.
- **Section 31:** Members and staff of a Tribunal are deemed to be public servants.
- **Section 32:** Protection of action taken in good faith.
- **Section 33:** Act to have overriding effect over inconsistent laws.
- **Section 34:** Power to remove difficulties.
- **Section 35:** Power of the Central Government to make rules.
- **Section 36:** Power of the appropriate Government to make rules.
- **Section 37:** Laying of rules before Parliament / State Legislature.

Annexure — Benches of the CAT and Their Territorial Jurisdiction

The following table sets out the principal Benches of the Central Administrative Tribunal and the territory over which each ordinarily exercises jurisdiction. (Circuit Benches additionally function from various locations; jurisdictional allocations may be revised by notification.)

Sl.	Bench	Territorial Jurisdiction
1	Principal Bench (New Delhi)	National Capital Territory of Delhi; State of Uttarakhand
2	Ahmedabad Bench	State of Gujarat
3	Allahabad Bench	Uttar Pradesh (excluding districts under the Lucknow Bench)
4	Lucknow Bench	Uttar Pradesh (excluding districts under the Allahabad Bench)
5	Bengaluru Bench	State of Karnataka
6	Kolkata Bench	West Bengal; Sikkim; UT of Andaman and Nicobar Islands

Sl.	Bench	Territorial Jurisdiction
7	Jammu Bench	Specified districts of UT of Jammu & Kashmir and Leh district (UT of Ladakh)
8	Chandigarh Bench	Haryana; Himachal Pradesh; Punjab; UT of Chandigarh
9	Cuttack Bench	State of Odisha
10	Ernakulam Bench	Kerala; UT of Lakshadweep
11	Guwahati Bench	Assam; Manipur; Meghalaya; Nagaland; Tripura; Arunachal Pradesh; Mizoram
12	Hyderabad Bench	Andhra Pradesh and Telangana
13	Jabalpur Bench	Madhya Pradesh; Chhattisgarh
14	Jodhpur Bench	Rajasthan (excluding districts under the Jaipur Bench)
15	Jaipur Bench	Rajasthan (excluding districts under the Jodhpur Bench)
16	Chennai Bench	Tamil Nadu; UT of Puducherry
17	Mumbai Bench	Maharashtra; Goa; UT of Dadra & Nagar Haveli and Daman & Diu
18	Patna Bench	Bihar; Jharkhand
19	Srinagar Bench	Specified districts of UT of Jammu & Kashmir and Kargil district (UT of Ladakh)

Note: Bench names, jurisdictions and the number of Circuit Benches are notified administratively and may change. Always confirm the current allocation from the official CAT website (cgat.gov.in) before relying on it.

Sources Consulted (for Currency Verification)

- The Administrative Tribunals Act, 1985 — India Code (indiacode.nic.in), as amended.
- The Tribunals Reforms Act, 2021 (Act 33 of 2021) — India Code / Department of Revenue.
- *Madras Bar Assn. v. Union of India*, 2025 SCC OnLine SC 2498, decided 19-11-2025 (Supreme Court; CJI B. R. Gavai and Justice K. Vinod Chandran).
- *L. Chandra Kumar v. Union of India*, (1997) 3 SCC 261 (AIR 1997 SC 1125).
- Official website of the Central Administrative Tribunal — cgat.gov.in (Introduction: 19 Benches and 19 Circuit Benches; 215 notified organisations; present Chairman).